

OFFICE OF THE SECRETARY

P.O. Box 942883
Sacramento, CA 94283-0001



November 16, 2018

Honorable Anne H. Egerton
Judge of the Superior Court
County of Los Angeles
210 West Temple Street
Los Angeles, CA 90012-3210

Re: Trejo, Joaquin Espinosa
CDC No.: G14764
Case No.: BA309468
Date of Sentence: 04/08/2008

Dear Honorable Anne H. Egerton:

The purpose of this letter is to provide the court with authority to resentence Joaquin Espinosa Trejo pursuant to Penal Code Section 1170, subdivision (d)¹. This section provides that, upon recommendation of the Secretary of the California Department of Corrections and Rehabilitation, the court may recall a previously ordered sentence and commitment, and resentence the defendant in the same manner as if he had not previously been sentenced, provided the new sentence is no greater than the initial sentence. As of June 27, 2018 a court's power to resentence under this section expressly extends to judgments entered after a plea agreement, if in the interest of justice.

Inmate Trejo was sentenced in 2008, and was convicted of section 245, subdivision (A)(1), ASSAULT WITH DEADLY WEAPON. The trial court sentenced inmate Trejo on 04/08/2008. At sentencing, the trial court imposed two sentence enhancements: 12022.7 and 186.22. Both sentence enhancements were attached to Inmate Trejo's section 245 offense. (See attached abstract.)

In light of the above, please consider *People v. Gonzalez* ((2009) 178 Cal.App.4th 1325. In *People v. Gonzalez*, the appellate court held the trial court should not have imposed sentence enhancements under section 12022.7, subdivision (a) and section 186.22, because both sentence enhancements were based on the great bodily injury the defendant caused while committing the underlying offense. (*Id.* at p. 1332.)

¹ All further statutory references are to the Penal Code unless otherwise indicated.

Based on the above facts and case law, it appears that inmate Trejo's sentence warrants the attention of the court. Pursuant to Section 1170, subdivision (d), as the Secretary, I recommend the inmate's sentence be recalled² and that he be resentenced³ in accordance with the cited authority.

Sincerely,

(for) 
RALPH M. DIAZ
Secretary (A)

Enclosures:

Abstract of Judgment-Prison Commitment-Determinate
Minute Order
Information/Complaint

cc: Los Angeles District Attorney
Private Attorney

² Please be advised that victims may be entitled to reasonable notice of any public hearings, and to be heard at said hearings upon request (Cal. Const., art. I, § 28, subd. (b), pars. (7) and (8).

³ Pursuant to *People v. Kemper* (1980) 112 Cal. App. 3d 434, (re)sentencing that results in an inmate being overdue for release will result in custody credits in excess of the inmate's maximum term of confinement being applied to shorten the parole term. If a court wishes to maintain what it considers to be an adequate supervisory term under those circumstances, the court may request the inmate waive enough credits to preserve an adequate supervisory term. If a court indicates in the abstract of judgement that custody credits have been waived by an inmate to allow for a specified parole term, CDCR will calculate the appropriate number of post-sentence credits that will need to be waived to allow for the specified parole term after the inmate's release.

614764 9-20-19
OK TO GO STWD NOTED
ABSTRACT OF JUDGMENT - PRISON COMMITMENT - DETERMINATE APR 21 2008
SINGLE, CONCURRENT, OR FULL-TERM CONSECUTIVE COUNT FORM

[Not to be used for multiple count convictions or for 1/3 consecutive sentences]

CR-290.1

SUPERIOR COURT OF CALIFORNIA, COUNTY OF: LOS ANGELES			
PEOPLE OF THE STATE OF CALIFORNIA vs. DEFENDANT: TREJO, JOAQUIN ESPINOSA		DOB: 11-16-79	CASE NUMBER BA309468
AKA: CII NO.: A27326467 BOOKING NO.: 9211175		☐ NOT PRESENT	
COMMITMENT TO STATE PRISON ABSTRACT OF JUDGMENT		☐ AMENDED ABSTRACT	
DATE OF HEARING 04-08-08	DEPT. NO. 126	JUDGE ANNE H EGERTON	
CLERK EVYNN DAVIS	REPORTER JANIS FONSECA	PROBATION NO. OR PROBATION OFFICER X1942521 ☐ IMMEDIATE SENTENCING	
COUNSEL FOR PEOPLE ANDREA C POTT		COUNSEL FOR DEFENDANT VICTOR SALERNO ☐ APPTD.	

1. Defendant was convicted of the commission of the following felony:

COUNT	CODE	SECTION NUMBER	CRIME	YEAR CRIME COMMITTED	DATE OF CONVICTION (MO./DATE/YEAR)	CONVICTED BY	TERM (L, M, U)	TIME IMPOSED
1	PC	245(A)(1)	ASSAULT WITH DEADLY WEAPON	2006	01-29-07	JURY COURT PLEA	X M	3 YRS. 0 MOS.

2. ENHANCEMENTS charged and found to be true TIED TO SPECIFIC COUNTS (mainly in the PC 12022 series). List each count enhancement horizontally. Enter time imposed for each or "S" for stayed. DO NOT LIST ANY STRICKEN ENHANCEMENT(S).

COUNT	ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	TOTAL
1	12022.7(A)	3	186.22(B)(1)(C)	10			13

3. ENHANCEMENTS charged and found to be true FOR PRIOR CONVICTIONS OR PRISON TERMS (mainly in the PC 667 series). List all enhancements horizontally. Enter time imposed for each or "S" for stayed. DO NOT LIST ANY STRICKEN ENHANCEMENT(S).

ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	TOTAL

4. ☐ Deft. sentenced per: ☐ PC 667(b)-(i) or PC 1170.12 (two strikes) ☐ PC 1170(a)(3). Pre-confinement credits equal or exceed time imposed. (Paper Commitment.) Deft. ordered to report to local Parole Office upon release.

5. FINANCIAL OBLIGATIONS (plus any applicable penalty assessments): ☒ Court Security Fee of \$ 20.00 per PC 1465.8.

Restitution Fine(s): \$ 200.00 per PC 1202.4(b) forthwith per PC 2085.5; \$200.00 per PC 1202.45 suspended unless parole is revoked. \$ _____ per PC 1202.44 is now due, probation having been revoked.

Restitution per PC 1202.4(f): ☐ \$ _____ / ☐ Amount to be determined to ☐ victim(s)* ☐ Restitution Fund

☐ *Victim name(s), if known, and amount breakdown in item 8 below. ☐ *Victim name(s) in probation officer's report.

Fine(s): \$ _____ per PC 1202.5. \$ _____ per VC 23550 or _____ days ☐ county jail ☐ prison in lieu of fine ☐ concurrent ☐ consecutive

☐ Includes: ☐ \$50 Lab Fee per HS 11372.5(a) ☐ \$ _____ Drug Program Fee per HS 11372.7(a) for each qualifying offense.

6. TESTING: a. ☐ Compliance with PC 296 verified b. ☒ DNA per PC 296 c. ☐ AIDS per PC 1202.1 d. ☐ other (specify): _____

7. IMMEDIATE SENTENCE: ☐ Probation to prepare and submit a post-sentence report to CDCR per PC 1203c. Deft's Race/Nat'l Origin **H**

8. Other orders (specify): **PURSUANT TO PENAL CODE SECTION 186.30, REGISTER AS STREET GANG PARTICIPANT WITH LOCAL LAW ENFORCEMENT AGENCY WITHIN 10 DAYS OF RELEASE FROM CUSTODY. PURSUANT TO GOVERNMENT CODE SECTION 76104.7, COURT IMPOSES FINE OF \$20. DEFENDANT WAIVES APPEARANCE FOR RESTITUTION HEARING.**

9. TOTAL TIME IMPOSED EXCLUDING COUNTY JAIL TERM: **16**

10. ☐ This sentence is to run concurrent with (specify): _____

11. Execution of sentence imposed: a. ☒ at initial sentencing hearing. b. ☐ at resentencing per decision on appeal. c. ☐ after revocation of probation. d. ☐ at resentencing per recall of commitment. (PC 1170(d).) e. ☐ other (specify): _____

DATE SENTENCE PRONOUNCED 4-8-08	CREDIT FOR TIME SPENT IN CUSTODY	TOTAL DAYS: 653	ACTUAL LOCAL TIME 568	LOCAL CONDUCT CREDITS 85	☐ 4019 ☐ 2933.1	TIME SERVED IN STATE INSTITUTION: DMH CDCR CRC
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13. The defendant is remanded to the custody of the sheriff ☒ forthwith ☐ after 48 hours excluding Saturdays, Sundays, and holidays. To be delivered to ☒ the reception center designated by the director of the California Department of Corrections and Rehabilitation. ☐ Other (specify): _____

CLERK OF THE COURT: I hereby certify the foregoing to be a correct abstract of the judgment made in this action.

DEPUTY'S SIGNATURE L. KENDALL	DATE 4-14-08
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This form is prescribed under PC 1213.5 to satisfy the requirements of PC 1213 for determinate sentences. Attachments may be used but must be referred to in the abstract.

